

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

Filed: _____

MARGARET COLACINO-WILSON,
Plaintiff,

INDEX NO.

-against-

Plaintiff designates
Richmond County as the
place of trial.

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER DANIEL F. CENTER and
POLICE OFFICERS "JOHN DOE 1-5" (first and last names being
fictitious),

S U M M O N S

Defendants.

The basis of venue is
the County in which the
cause of action arose.

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve
a copy of your answer on the plaintiff's attorneys within 20 days after the service of this
summons, exclusive of the day of service of this summons, or within 30 days after service of this
summons is complete if this summons is not personally delivered to you within the State of New
York.

In case of your failure to answer this summons, a judgment by default will be taken
against you for the relief demanded in the complaint, together with the costs of this action.

Dated: New York, New York
August 11, 2020

Steven Gershowitz
STEVEN GERSHOWITZ, ESQ.
RAPHAELSON & LEVINE LAW FIRM, P.C.
Attorneys for Plaintiff
Pennsylvania Building
14 Penn Plaza, Suite 1718
New York, New York 10122
(212) 268-3222

DEFENDANTS:

THE CITY OF NEW YORK
Office Of The Comptroller
100 Church Street, New York, NY 10007

NEW YORK CITY POLICE DEPARTMENT
One Police Plaza, New York, New York 10038

POLICE OFFICER DANIEL F. CENTER
One Police Plaza, New York, New York 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

MARGARET COLACINO-WILSON,

INDEX NO.

Plaintiff,

COMPLAINT

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER DANIEL F. CENTER and
POLICE OFFICERS "JOHN DOE 1-5" (first and last names being
fictitious),

Defendants.

Plaintiff, by her attorneys, RAPHAELSON & LEVINE LAW FIRM, P.C., as and for her
Complaint, respectfully alleges, upon information and belief:

1. The plaintiff, **MARGARET COLACINO-WILSON**, at all times herein mentioned was and still is a resident of the County of Richmond, City and State of New York.
2. At all times herein mentioned, defendant **THE CITY OF NEW YORK**, was and still is a municipal corporation, created, organized and existing under and by virtue of the laws of the State of New York.
3. At all times herein mentioned, defendant **NEW YORK CITY POLICE DEPARTMENT**, was and still is a municipal corporation, created, organized and existing under and by virtue of the laws of the State of New York.
4. At all times herein mentioned, defendant **POLICE OFFICER DANIEL F. CENTER** was employee of **THE CITY OF NEW YORK**.
5. At all times herein mentioned, defendants **POLICE OFFICERS "JOHN DOE 1-5"** (first and last names being fictitious) were employees of **THE CITY OF NEW YORK**.
6. At all times herein mentioned, defendants **POLICE OFFICER DANIEL F. CENTER** was employee of the **NEW YORK CITY POLICE DEPARTMENT**.
7. At all times herein mentioned, defendants **POLICE OFFICERS "JOHN DOE 1-5"** (first and last names being fictitious) were employees of the **NEW YORK CITY POLICE DEPARTMENT**.

8. Prior to the commencement of this action, a notice of claim in writing was served on behalf of **MARGARET COLACINO-WILSON**, upon **THE CITY OF NEW YORK** and **THE NEW YORK CITY POLICE DEPARTMENT**, in accordance with Section 50-e of the General Municipal Law.

9. Within ninety days (90) of the occurrence herein, a notice of claim in writing was served on behalf of **MARGARET COLACINO-WILSON**, upon **THE CITY OF NEW YORK** and **THE NEW YORK CITY POLICE DEPARTMENT** in accordance with Section 50-e of the General Municipal Law.

10. Within ninety days (90) of May 25, 2019, a notice of claim in writing was served on behalf of **MARGARET COLACINO-WILSON**, upon **THE CITY OF NEW YORK** and **THE NEW YORK CITY POLICE DEPARTMENT** in accordance with Section 50-e of the General Municipal Law.

11. Prior to the commencement of this action, notice of the intention of **MARGARET COLACINO-WILSON** to commence an action, unless the claim presented was adjusted within the prescribed time as set forth by applicable law to adjust such claims, was served on behalf of **MARGARET COLACINO-WILSON** upon **THE CITY OF NEW YORK** and **THE NEW YORK CITY POLICE DEPARTMENT**.

12. Although more than thirty (30) days have elapsed since service of such notice of claim, **THE CITY OF NEW YORK** and **THE NEW YORK CITY POLICE DEPARTMENT** have neglected and has refused to pay said claim or adjust same.

13. A hearing pursuant to General Municipal Law 50-h has been held on August 11, 2020.

14. This action is commenced within one (1) year and ninety (90) days from May 25, 2019, the date the accident as herein set forth occurred.

15. At all times herein mentioned and on May 25, 2019, Plaintiff **MARGARET COLACINO-WILSON** was lawfully upon Staten Island University Hospital South Campus, located at 375 Seguin Avenue, Staten Island, NY 10309.

16. At all times herein mentioned and on May 25, 2019, while Plaintiff **MARGARET COLACINO-WILSON** was lawfully upon the aforesaid premises, suddenly and without notice or warning members of the New York City Police Department, for no apparent reason and harassed, threatened, abused and terrified plaintiff, and plaintiff **MARGARET COLACINO-WILSON** subjected to assault and battery without probable cause and/or provocation.

17. At all times herein mentioned and on May 25, 2019, while Plaintiff **MARGARET COLACINO-WILSON** was lawfully upon the aforesaid premises, suddenly and without notice or warning members of the New York City Police Department, more specifically, defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER DANIEL F. CENTER and POLICE OFFICERS "JOHN DOE 1-5" (first and last names being fictitious)** for no apparent reason and harassed, threatened, abused and terrified plaintiff, and plaintiff **MARGARET COLACINO-WILSON** subjected to assault and battery without probable cause and/or provocation.

18. At all times herein mentioned and on May 25, 2019, Plaintiff **MARGARET COLACINO-WILSON** was threatened and detained against her will for a significant period of time.

19. Upon information and belief, defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER DANIEL F. CENTER and POLICE OFFICERS "JOHN DOE 1-5" (first and last names being fictitious)**, their agents, servants, contractees and/or employees were negligent, careless, reckless and action with malice and intent in the violation of the constitutional rights of the plaintiff, **MARGARET COLACINO-WILSON**; in acting negligently, carelessly, recklessly and with malice and intent; in acting in a threatening and demeaning manner; in unlawfully and wrongfully committing assault and battery against the plaintiff; in unlawfully striking the plaintiff; in the negligent infliction of emotional distress on the plaintiff; in embarrassing the character of the plaintiff who was a respected law abiding citizen; in negligently, carelessly, wantonly and willingly

humiliating, harassing and assaulting this plaintiff without just cause and/or provocation.

Defendants, **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER DANIEL F. CENTER and POLICE OFFICERS “JOHN DOE 1-5” (first and last names being fictitious)**, their agents, servants and/or employees, without just cause and/or provocation, and with force did willfully and maliciously engage in assault and battery against the Plaintiff; Defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER DANIEL F. CENTER and POLICE OFFICERS “JOHN DOE 1-5” (first and last names being fictitious)**, their agents, servants and/or employees, without just cause and/or provocation, and with force did intimidate, harass, threaten and assault her; in intentionally, wrongfully, unlawfully, maliciously and without warrant, pretense or legal process; in depriving her of her liberty; in confining and imprisoning the plaintiff without her consent and against her will; in causing, allowing and permitting this plaintiff to be abused, harassed, assaulted and terrorized without reason or provocation; in denying plaintiff her constitutional rights; in denying plaintiff her freedom and liberty; in singling out this plaintiff for harassment and detaining her against her will; in failing to permit this claimant her rightful and lawful freedom; in failing to properly investigate; and in improperly and falsely bringing unwarranted and unjustified charges against Plaintiff.

Defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER DANIEL F. CENTER and POLICE OFFICERS “JOHN DOE 1-5” (first and last names being fictitious)**, their agents, servants and/or employees, were negligent, careless and reckless in hiring and training their employees; in causing, creating and/or failing to cure and/or rectify a dangerous situation; in negligently, carelessly and recklessly failing and omitting to properly train, supervise and hire said police officers; in confining and/or detaining the plaintiff without her consent and against her will; in abusing and/or assaulting plaintiff without reason or provocation; in denying plaintiff her constitutional rights; in causing, allowing and permitting plaintiff to be harassed, humiliated and assaulted without reason, notice or warning; in singling out this plaintiff for harassment and

detaining her against her will; failed to provide necessary medical attention; caused, aggravated and worsened her injuries. Defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER DANIEL F. CENTER and POLICE OFFICERS “JOHN DOE 1-5” (first and last names being fictitious)**, their agents, servants and/or employees, were negligent, careless and reckless in hiring and training their employees including the police officers; in failing and omitting to keep said employees/officers under reasonable and proper control; in failing to provide and/or employ adequate and sufficient supervision and control to protect the public from dangerous situations; in failing to exercise reasonable and proper control over the officers; in failing to prevent these officers from engaging in dangerous, hazardous and harmful activities; in negligently, carelessly and recklessly hiring persons with violent and/or dangerous propensities; in permitting persons with known dangerous tendencies to interact with the public and specifically, this plaintiff, without reasonable, proper and adequate supervision and monitoring; in knowing of the dangerous and violent propensities and failing to warn the public of same and in further placing members of the public in harms way; defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER DANIEL F. CENTER and POLICE OFFICERS “JOHN DOE 1-5” (first and last names being fictitious)**, knew and/or should have known that hiring persons dangerous propensities, could and/or would in fact cause injuries and damages to persons lawfully present there at and knew and/or should have known of the dangerous propensities of certain individuals and should have prevented the hiring of same; in causing, creating and/or failing to cure and/or rectify a dangerous situation; in intentionally acting in a willful and malicious manner which said intentional, willful and malicious acts were made in public; and in other ways acting in a negligent, careless and reckless manner, particularly when **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER DANIEL F. CENTER and POLICE OFFICERS “JOHN DOE 1-5” (first and last names being fictitious)**, were aware or should have been aware that the aforementioned conditions, as existing, could and/or would cause physical and/or emotional injuries to those

persons lawfully present thereat, more particularly this plaintiff. Defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER DANIEL F. CENTER and POLICE OFFICERS “JOHN DOE 1-5” (first and last names being fictitious)**, further violated the plaintiff’s civil and constitution rights including but not limited to violations of 42 U.S.C.A. §1981, 42 U.S.C.A. §1983 and 41 U.S.C.A. §1985 and in failed to obey the applicable statutes, ordinances, rules and regulations in such cases made and provided for.

20. Solely as a result of the defendants' negligence, carelessness and recklessness, plaintiff was caused to suffer severe and serious personal injuries to mind and body, and further, that plaintiff was subjected to great physical pain and mental anguish.

21. The aforesaid occurrence was caused by the negligence of the defendants, without any culpable conduct on the part of plaintiff.

22. Defendants, by their agents, servants and/or employees violated the Civil Rights Act (42 U.S.C. §§1983 et seq.).

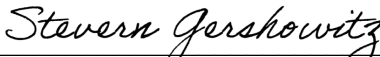
23. That as a result of the said assault and wrongful detainment, the plaintiff was humiliated, degraded and demeaned and was severely and seriously injured, suffered and still suffers, and will continue for some time to come to suffer physical, emotional, mental and psychological injuries and became sick, sore, lame and disabled and so remains and plaintiff was compelled to seek medical assistance in an effort to be healed and cured of said injuries.

24. This action falls within one or more of the exceptions set forth in Section 1602 of the Civil Practice Law and Rules.

25. Due to defendants' negligence, plaintiff is entitled to damages in a sum which exceeds the jurisdictional limit of all lower Courts which would otherwise have jurisdiction.

WHEREFORE, the plaintiff demands judgment awarding damages, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with interest and the costs and disbursements of this action, and such other and further relief as to this Court seems just and proper.

Dated: New York, New York
August 11, 2020



By: Steven Gershowitz, Esq.
RAPHAELSON & LEVINE LAW FIRM, P.C.
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SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

INDEX NO.

MARGARET COLACINO-WILSON,
Plaintiff,

**ATTORNEY'S
VERIFICATION**

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER DANIEL F. CENTER and
POLICE OFFICERS "JOHN DOE 1-5" (first and last names being
fictitious),

Defendants.

Steven Gershowitz, Esq., an attorney duly admitted to practice law in the State of New York, makes the following affirmation under the penalty of perjury:

I am an associate of the RAPHAELSON & LEVINE LAW FIRM, P.C., the attorneys of record for the plaintiff.

I have read the foregoing Complaint and know the contents thereof; the same is true to my own knowledge except as to the matters therein stated to be alleged on information and belief and that as to those matters, I believe them to be true.

This verification is made by affirmant and not by plaintiff because he is not in the County of New York, which is the County where your affirmant maintains offices.

The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are correspondence had with the said plaintiff, information contained in the said plaintiff's file, which is in affirmant's possession, and other pertinent data relating thereto.

Dated: New York, New York
August 11, 2020

Steven Gershowitz
STEVEN GERSHOWITZ, ESQ.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND
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-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE
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Defendants.

SUMMONS and COMPLAINT

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